

The Assam Court-Fees (Amendment) Act, 1950

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[ASSAM](#)

[India](#)

[The Assam Court-Fees \(Amendment\) Act, 1950](#)

[Act 8 of 1950](#)

[Published on 30 March 1950](#)

[Commenced on 30 March 1950](#)

[\[This is the version of this document from 30 March 1950.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Assam Court-Fees \(Amendment\) Act, 1950](#)

[\(Assam Act](#)

[8 of 1950](#)

[\)](#)

[Last Updated 11th February, 2020](#)

[\[Passed by the Assembly\]](#)

[Published in the "Assam Gazette, Extraordinary", dated the 30th March, 1950.](#)

[An \[Act\]](#)

[\[For Statement of Objects and Reasons, see 'Assam Gazette', 1950, Part V, page 47.\]](#)

[to amend the Court-Fees Act, 1870, with reference to the scale of court-fees in Assam Whereas it is necessary to increase temporarily the revenues of Assam and for that purpose to amend the Court-fees Act, 1870 \(VII of 1870\)](#)

hereinafter called the principal Act in its application to Assam, in the manner hereinafter appearing;
It is hereby enacted as follows:

1.

Short title, extent and commencement.

(1)

This Act may be called the Assam Court-fees (Amendment) Act, 1950.

(2)

It extends to the whole of Assam.

(3)

It shall come into force, on the first day of April, 1950 and shall remain in force for a period of five year.

2.

Amendment of Section 18 of Act VII of 1870.

- In Section 18 of the principal Act, for the words "a fee of eight annas" the words "a fee of one rupee" shall be substituted.

3.

Amendment of Section 19.

- Item (x) in Section 19 of the principal Act shall be deleted.

4.

Amendment of Schedule I, Article I.

- For Article I in the First Schedule to the principal Act, the following shall be substituted namely:

I.

Plaint, written statement pleading a set-off or
counter-claim or memorandum of appeal (not otherwise provided
for in this Act) or of cross-objection presented to any Civil
Court or Revenue Court except those mentioned in Section 3
when the amount or value of the subject-matter
in dispute does not exceed seventy-five rupees, for every five
rupees for part thereof of such amount or value

Six annas

and

when such amount or value exceeds seventy-five
rupees, for every five rupees or part thereof, in excess of
seventy-five rupees, up to one hundred rupees

Eight annas

and

when such amount or value exceeds one hundred
rupees or every ten rupees or part thereof, in excess of one
hundred rupees up to one hundred and fifty rupees

One rupee ten annas

and

when such amount or value exceeds one hundred
and fifty rupees, for every ten rupees or part thereof up to one
hundred rupees.

One rupee two annas

and

when such amount or value exceeds one hundred
rupees, for every one hundred rupees, or part thereof, in excess
of one thousand rupees, up to seven thousand five hundred rupees

Seven rupees eight annas

and

when such amount or value exceeds seven thousand

five hundred rupees, for every two hundred and fifty rupees, or part thereof, in excess of seven thousand five hundred rupees, up to ten thousand rupees

Fifteen rupees

and

when such amount or value exceeds ten thousand rupees, for every five hundred rupees, or part thereof, in excess of ten thousand rupees, up to twenty thousand rupees

Twenty-two rupees eight annas

and

when such amount or value exceeds twenty thousand rupees, for every one thousand rupees, or part thereof, in excess of twenty thousand rupees, up to fifty thousand rupees.

Thirty rupees

when such amount or value exceeds fifty thousand rupees, for every five thousand rupees or part thereof, in excess of fifty thousand rupees Provided that the maximum fee leviable on a plaint or memorandum of appeal shall be ten thousand rupees."

Thirty-seven rupees eight annas:

5.

Amendment of Schedule I. Article 6.

- In the third column in Article 6 in the same Schedule to the principal Act,-

(a)

for the words "four annas", opposite Clause (a) in the second column, the words "eight annas" shall be substituted; and

(b)

or the words "eight annas" opposite the first item in Clause (b) in the second column, the words "one rupee" shall be substituted, and for the words "one rupee" opposite the second item in that clause, the words "two rupees" shall be substituted.

6.

Amendment of Schedule I. Article 7.

- In the third column in Article 7 in the same Schedule to the principal Act,-

(a)

for the words "eight annas" opposite Clause (a) in the second column, the words "two rupee" shall be substituted; and

(b)

for the words "one rupees" opposite Clause (b) in the second column, the words "two rupees" shall be substituted; and

(c)

for the words "four rupees" opposite the last entry in the second column, the words "five rupees" shall be substituted.

7.

Amendment in Schedule I. Article 8.

- In Article 8 of the First Schedule to the principal Act, for the figures "1879" in the first column, the figures "1899" shall be substituted.

8.

Amendment in Schedule I. Article 11.

- In Article 11 in the same Schedule to the principal Act,-

(i)

for the entries above the proviso in the second column and for the entries in the third column, the following shall be substituted, namely:

"When the amount or value of the property

in respect of which the grant of probate or letters is made

exceeds one thousand rupees, on such amount or value up to ten

thousand rupees.

Two per centum.

and

when such amount or value exceeds ten thousand rupees, on the portion of such amount or value which is in excess of ten thousand rupees, up to fifty thousand rupees.

Three per centum

and

when such amount or value exceeds fifth thousand rupees, on the portion of such amount or value which is in excess of fifty thousand rupees up to a lakh of rupees.

Four per centum.

and

when such amount or value exceeds a lakh of rupees on the portion of such amount or value which is in excess of a lakh of rupees up to two lakhs and fifty thousand rupees.

Five per centum

and

when such amount or value exceeds two lakhs and fifty thousand rupees, on the portion of such amount or value which is in excess of two lakhs and fifty thousand rupees up to three lakhs of rupees

Five-and-a-half per centum.

and

when such amount or value exceeds three lakhs of rupees, or on the portion of such amount or value which is in excess of three lakhs of rupees up to four lakhs of rupees

Six per centum.

and

when such amount or value exceeds four lakhs of rupees, on the portion of such amount or value which is in excess of four lakhs of rupees up to four lakhs of rupees

Six-and-a-half per centum.

and

when such amount or value exceeds five lakhs of rupees, on the portion of such amount or value which is in excess of five lakhs or rupees.

Seven per centum."

(2)

In the proviso for the words and figures "the Succession Certificate Act, 1889" the words and figures "the Indian Succession Act, 1925" shall be substituted.

9.

Substitution in Schedule I of new Article 12.

- For Article 12 of the First Schedule to the principal Act the following article shall be substituted, namely:

"12.

Certificate under the Indian Succession Act, 1925

When the amount or value of any debt or security specified in the certificate under Section 374 of the Act exceeds one thousand rupees

Two per centum on the first ten thousand rupees;

three per centum on the next forty thousand rupees; four per

centum on the next one lakh and fifty thousand rupees; five and a half per centum on the next fifty thousand rupees; six per centum on the next one lakh of rupees; six and a half per centum on the next one lakh of rupees.

and

seven per centum on the remainder of such amount or value.

and

when the aggregate amount or value of any debts or securities specified in the certificate and of any debts or securities to which the certificate has been extended under Section 376 of the Act exceeds one thousand rupees.

In respect of such portion of the aggregate amount or value as consists of the amount or value of debts or securities so specified, the fee hereinbefore provided in that behalf in this article.

and

three per centum on such portion of the first ten thousand rupees; four and a half per centum of such portion of the next forty thousand rupees; six per centum on such portion of the next fifty thousand rupees; seven and a half per centum on such portion of the next one lakh and fifth thousand rupees; eight and a quarter per centum on such portion of the next fifty thousand rupees; nine per centum on such portion of the next one lakh of rupees; nine and three-quarters per centum on such portion of the next one lakh of rupees.

and

ten and a half per centum on such portion of the remainder of such aggregate amount or value as consists of the amount or value of debts or securities to which the certificate has been extended.

Note.- (1) The amount of a debt is its amount including interest on the day on which the inclusion of the debt in the certificate is applied for, so far as such amount can be ascertained.

(2) Whether or not any power with respect to a security specified in a certificate has been conferred under the Act and where such a power has been so conferred, whether the power is for the receiving of interest or dividends on, or for the negotiation or transfer of the security, or for both purposes, the value of the security is its market value on the day on which the inclusion of the security in the certificate is applied for, so far as such value can be ascertained."

10.

Amendment of table of rates of ad valorem fees.

- For the table of rates of ad valorem fees leviable on the institution of suits, at the end of the same Schedule to the principal Act, the table set forth in the Schedule to this Act shall be substituted.

11.

Amendment of Schedule II. Article I. Clauses (a), (b), (c) and (d) and insertion of a new Clause (e).

- In Article I, in the Second Schedule to the principal Act-

(a)

the second entry in the second column in Clause (a) shall be deleted;

(b)

after Clause (a) the following new clause in the second column and entry in the third column shall be added, namely,-

"(a) When presented to a Regional Transport Authority or State Transport Authority containing prayer for permits for contract carriage, stage carriage, private carrier or public carrier or when presented to any officer containing prayer for registration as a dealer under the provisions of the Assam Sales Tax Act, 1947 Five rupees."

(c)

in Clause (a) after the words "Municipal Commissioner" in the third entry in the second column, the words "or member of a local board" shall be inserted;

(d)

(i)

for the words "one anna" opposite Clause (a) in the second column, the words "Four annas" shall be substituted;

(ii)

for the words "Eight annas" opposite Clause (b) in the second column the following shall be substituted, namely,-

"In the case of a complaint or charge of an offence presented to a criminal court or in the case of an application or petition presented to any officer of land revenue by any person holding temporarily settled land under direct engagement with Government, and when the subject-matter of the application or petition relates exclusively to such engagement, one rupee and in other cases twelve annas;"

(iii)

for the words "One rupees" opposite Clause (c), in the second column, the words "Two rupees" shall be substituted:

(e)

in the second column in Clause (b) the following shall be added, namely,-

"or when presented to a Collector or other officer making a settlement of land revenue, or to a board of revenue, or a Commissioner of Revenue, relating to matters, connected with the assessment of land or the ascertainment of rights thereto or interest therein, if presented previous to the final confirmation of such settlements;

or when presented to any officer of land revenue by any person holding temporarily settled land under direct engagement with Government, and when the subject-matter of the application or petition relates exclusively to such engagement."

(f)

for the words "Two rupees" opposite Clause (d) in the second column, the words "Four rupees" shall be substituted:

(g)

after Clause (d) the following new clause in the second column and entry in the third column shall be added, namely:

(e)

when presented to any officer containing prayer for settlement to fishery, ferry, forest produce, forest mahals, elephant mahals, or an offer giving terms for acceptance of Government for any construction or an application for a permit or licence to deal in controlled commodities Five rupees."

12.

Amendment of Schedule II. Article 10.

- In Article 10 in the same Schedule the principle Act,-

(1)

for the words "Eight annas" opposite Clause (a) in the second column, the words "One rupee" shall be substituted; and

(2)

for the words "One rupee", opposite Clause (b) in the second column, the word "Two rupees" shall be substituted;

(3)

at the end of Clause (c) in the second column after putting a comma after the words "Executive Authority", the following shall be added, namely,-

"to an appellate authority prescribed under the Motor Vehicles Act, 1939 or to an appellate authority prescribed under the Assam Sales Tax Act, 1947;

(4)

for the words "Two rupees" opposite Clause (c) in the second column, the words "Four rupees" shall be substituted.

13.

Amendment of Schedule II. Article 11.

- In Article 11 in the same Schedule to the principal Act,-

(a)

for the words "Eight annas" opposite Clause (a) in the second column, the words "Two rupees" shall be substituted;

(b)

for the words "Two rupees" opposite Clause (b) in the second column, the words "Five rupees" shall be substituted;

(c)

add the following as new clauses in the second column and entries in the third column-

"(c) to a High Court in miscellaneous revenue matters [except (d) below] or to an appellate authority prescribed under the Motor Vehicles Act, 1939 or to an appellate authority prescribed under the Assam Sales Tax Act, 1947.....The rupees; and

(d)

to a High Court in appeal and revision matters arising out of settlement of fisheries-

(i)

when bid money is below ten thousand rupees....Ten rupees;

(ii)

when bid money is above ten thousand rupees but below twenty thousand rupees...Fifteen rupees;

(iii)

when bid money is above twenty thousand rupees....Twenty rupees."

14.

Amendment of Schedule II. Article 12.

- For the words "Five rupees" in the third column opposite Article 12 in the same Schedule to the principal Act, the words "Ten rupees" shall be substituted.

15.

Amendment of Schedule II. Article 17.

(1)

The words "Ten rupees" in the third column opposite Article 17 in the same Schedule to the principal Act and the bracket opposite that article in the second column in the same Schedule shall be omitted.

(2)

In the third column in the said article,-

(a)

opposite entries (i), (ii), (iv) and (vi) the words "Fifteen rupees" shall be inserted; and

(b)

opposite entry (iii) and (v) the words "Twenty rupees" shall be inserted.

16.

Amendment of Schedule II. Article 18.

- In Article 18 of the Second Schedule to the principal Act, the following shall be substituted, namely,-
"18.

Application under Section 14 or Section 20 of the Indian
Arbitration Act, 1940 for a direction for filing an award or for
an order for filing an agreement

When presented to a Munsiffs Court

Fifty rupees.

When presented to any other Court

Fifty rupees."

17.

Exemption of certain probates, letters of administration and certificates.

- Nothing in this Act shall apply to any probate, letters of administration or certificate in respect of which the fee payable under the law for the time being in force has been paid prior to the commencement of this Act but which have not been issued.

The Schedule

Table of rates of ad valorem fees leviable on the institution of suits

[See Section 10 of the Assam Court-fees (Amendment) Act, 1950]

When the amount or value of the subject-matter

exceeds

But does not exceed

Proper fees

(1)

(2)

(3)

Rs.

Rs.

Rs.

a.

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1,05,000
2,511
14
1,05,000
1,10,000
2,549
6
1,10,000
1,15,000
2,586
1
1,15,000
1,20,000
2,624
6
1,20,000
1,25,000
2,661
14
1,25,000
1,30,000
2,699
6
1,30,000
1,35,000
2,736

14
1,35,000
1,40,000
2,774
6
1,40,000
1,45,000
2,811
14
1,45,000
1,50,000
2,849
6
1,50,000
1,55,000
2,886
14
1,55,000
1,60,000
2,924
6
1,60,000
1,65,000
2,961
14
1,65,000
1,70,000
2,999
6
1,70,000
1,75,000
3,036
14
1,75,000
1,80,000
3,074
6
1,80,000
1,85,000
3,111
14
1,85,000
1,90,000
3,149
6
1,90,000
1,95,000
3,186
14
1,95,000
2,00,000

3,224

6

2,00,000

2,05,000

3,261

14

and the fee increases at the rate of thirty-seven rupees eight annas for every five thousand rupees or part thereof, up to a maximum fee of ten thousand rupees, for example-

When the amount or value of the subject-matter

exceeds

But does not exceed

Proper fee

(1)

(2)

(3)

Rs.

Rs.

Rs.

a.

3,00,000

3,974

6

4,00,000

4,724

6

5,00,000

5,474

6

6,00,000

6,974

6

7,00,000

6,224

6

8,00,000

7,724

6

9,00,000

8,474

6

10,00,000

9,224

6

11,00,000

9,974

6

11,05,000

10,000

0

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